Dunn & Acosta LLP
Conroe, TX
Phone 713-555-4341

Settlement Demand

26 Oct 2023

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1254 - Demand for settlement

Dear Claims Representative:

Our firm represents Marcus Davidson in connection with the collision that occurred in a parking lot on 7 Feb 2023. Our client was stopped and waiting for a parking space when your insured's vehicle backed into the driver's side of our client's car. The impact was forceful enough to deflect our client's vehicle and trigger airbag deployment in the adjacent seat area. Liability is clear: your insured failed to yield, failed to keep a proper lookout while reversing, and caused the collision entirely.

Following the accident, our client was transported for evaluation and diagnosed with cervical and lumbar strain. Our client has undergone physical therapy and continues to experience neck stiffness, lower back pain, and headaches that interfere with work and daily activities. Our client's treating physician has recommended ongoing care, and records documenting treatment and associated costs are available upon request.

Our client's damages include medical expenses, lost wages, pain and suffering, and the diminished enjoyment of ordinary life. Considering these losses, our client will accept $44,000.00 in full settlement of all claims arising from this collision. This offer remains open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we will file suit without further notice.

Expert review: Matthew Moore, biomechanical engineer

Sincerely,

Laura Bryant
Dunn & Acosta LLP